

No. 1

A MEASURE passed by the National Assembly of the Church of England.

To vest part of Farnham Castle in the Church Commissioners and to make provision for their powers in relation to the whole of Farnham Castle.

[2nd March 1961.]

1.—(1) Upon the passing of this Measure all those parts of Farnham Castle and all easements and other rights enjoyed with those parts, which were immediately before the passing of this Measure vested in the Diocesan Board of Finance of the diocese of Guildford, shall be transferred to, and shall by virtue of this section and without any conveyance, transfer or other assurance vest in, the Church Commissioners (in this Measure called “the Commissioners”):

Vesting of
Farnham
Castle.

Provided that the transfer and vesting made by this section shall not extinguish any easements or other rights existing at the passing of this Measure and enjoyed with Farnham Castle or to which Farnham Castle is subject.

(2) From the passing of this Measure the Commissioners shall hold the whole of Farnham Castle freed and discharged from all previously existing trusts, but subject to the succeeding section.

(3) The Episcopal Endowments and Stipends Measure, 1943, shall cease to apply to any part of Farnham Castle.

6 & 7 Geo. 6.
No. 2.

2. The Commissioners may—

- (i) permit the whole or part of Farnham Castle to be used for purposes connected with the Church of England;
- (ii) let the whole or part of Farnham Castle for any approved term or terms to approved persons or corporations for approved purposes;
- (iii) grant and release all such easements or other rights over or in relation to Farnham Castle as proper estate management may from time to time require:

Powers of
Com-
missioners.

Provided that the Commissioners shall have no power to sell or otherwise dispose of the whole or part of their estate in Farnham Castle, except in exercise of the express powers granted by paragraphs (ii) and (iii) of this section.

3. In this Measure the following expressions have the meanings hereby assigned to them:—

Interpretation.

“approved” means approved in writing by the Archbishop of Canterbury and the Bishop of Guildford;

“ Farnham Castle ” means Farnham Castle, in the County of Surrey, being the former Episcopal House of Residence of the See of Winchester with those gardens and grounds thereto belonging which were immediately before the passing of this Measure vested either in the Commissioners or in the Diocesan Board of Finance of the diocese of Guildford.

Repeals.

14 & 15 Geo. 5. 4. Section fourteen of the Diocese of Winchester (Division)
No. 6. Measure, 1923, and the whole of the Farnham Castle Measure,
25 & 26 Geo. 5. 1935, are hereby repealed.
No. 2.

Short title.

5. This Measure may be cited as the Farnham Castle Measure, 1961.

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